

		1122, 1132.) “Such fee enhancements are intended to compensate for the risk of loss generally in contingency cases as a class. [Citation.]” (Id. at p. 1133.) This is a standard lemon law action that settled in less than three months after it was filed, and within five (5) weeks after Defendant appeared in the action, with the issue of fees and costs outstanding. (Enemuoh Decl., ¶¶ 4, 5.) The Court does not find an enhancement or negative multiplier warranted under the circumstances of this case. Any risk or delay is already included within the lodestar amount. Both parties’ requests are DENIED. Costs Plaintiff seeks recovery of \$535.24 in costs (incorrectly stated as \$532.20 in points and authorities and Alam Declaration) including the fee for this motion. (See Ex. D to Alam Decl., Memorandum of Costs.) Defendant does not oppose the costs and has not filed a motion to tax costs. The Court GRANTS costs \$535.24. Plaintiff to give notice.
106	Duncan vs. Hoskins 16-00844595	Motion for Reconsideration Defendants Christopher Hoskins and defendant/cross-complainant Colorado Storage Partners, LLC move the Court for reconsideration of its February 24, 2026, order granting Kathleen Duncan and 3D Co Holdings, LLC’s petition to confirm arbitration award. The Motion is DENIED. A motion for reconsideration made by a party must be based on new or different facts, circumstances, or law than those before the court at the time of the original

		ruling. (Code Civ. Proc. § 1008(a).) The motion must also be accompanied by an affidavit from the moving party that states: (1) what application was previously made; (2) when and to what judge; (3) what order was made; and (4) what new or different facts, circumstances or law are claimed to be shown. (Ibid.) “[F]acts of which the party seeking reconsideration was aware at the time of the original ruling are not ‘new or different.’ [Citation.]” (In re Marriage of Herr (2009) 174 Cal.App.4th 1463, 1468.) A party seeking reconsideration also must provide a satisfactory explanation for the failure to produce the evidence at an earlier time. (New York Times Co. v. Superior Court (2005) 135 Cal. App. 4th 206, 213.) The burden under section 1008 “is comparable to that of a party seeking a new trial on the ground of newly discovered evidence: the information must be such that the moving party could not, with reasonable diligence, have discovered or produced it at the trial.” (Id. at 212–13.) Here, Defendants have not produced any new facts, circumstances or law. The Court was aware of and addressed Defendants’ opposition in its February 24, 2026, ruling. This included Defendants’ arguments about Paso Robles Holdings, LLC not being named as a respondent in the petition and Defendants’ contention that notice was not provided until after the opposition (the Court found that the petition was timely filed and served). (See ROA 669.) Further, Defendants’ counsel raised the argument about 3D CO Holdings, LLC’s franchise tax board suspended status at the hearing. (See Oppn at 2:9-11; see, generally, Reply (no dispute as to this fact).) Apart from a party’s motion, the court itself has the inherent power to reconsider its rulings it believes to be in error. (Le Francios v. Goel (2005) 35 Cal. 4th 1094, 1108; Golden Door Properties, LLC v. Superior Court of San Diego County (2020) 53 Cal.App.5th 733, 788; In re Marriage of Barthold (2008) 158 Cal. App. 4th 1301, 1307-08.) “Even without a change of law, a trial court
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	may exercise its inherent jurisdiction to reconsider an interim ruling. [Citation.]” (Pinela v. Neiman Marcus Group, Inc. (2015) 238 Cal.App.4th 227, 237.) Although Defendants already presented their arguments about 3D Co Holdings, LLC’s suspended status at the hearing on the underlying motion (such that it is not a new fact which might entitle Defendants to reconsideration), the Court makes the following additional observations regarding 3D Co Holdings, LLC’s suspended status. “There is a difference between the capacity to sue, which is the right to come into court, and the standing to sue, which is the right to relief in court. Incapacity is merely a legal disability, such as infancy or insanity, which deprives a party of the right to come into court. The right to relief, on the other hand, goes to the existence of a cause of action. It is not a plea in abatement, as is lack of capacity to sue.” (Color-Vue, Inc. v. Abrams (1996) 44 Cal.App.4th 1599, 1604 (internal citations omitted).) “A defense based on a party's lack of capacity to sue can be forfeited. Specifically, a defense based on a suspended corporation's lack of capacity to sue is a plea in abatement which is not favored in law, is to be strictly construed and must be supported by facts warranting the abatement at the time of the plea. Such a defense must be raised by the defendant at the earliest opportunity, or it is waived.” (Rubinstein v. Fakheri (2020) 49 Cal.App.5th 797, 806.) Here, Defendants submit a printout from the California Secretary of State website which purports to reflect that 3D Co Holdings, LLC has been in suspended status since May 1, 2025. (RJN Exh. 2.) The suspension therefore occurred after the arbitrator issued his final award on February 15, 2025. (ROA 656.) The suspension went into place the day after Plaintiffs filed their initial Petition to Confirm Arbitration Award on April 30, 2025. (ROA 620.) Defendants did not raise their argument regarding 3D Co Holdings, LLC’s suspended status in their opposition to the initial petition, their supplemental
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		briefing regarding the initial petition, or in their written opposition to the petition that is the subject of this motion for reconsideration. (See ROAs 632, 643, 707.) Defendants instead waited until the eleventh hour—at the February 24, 2026, hearing—to raise the issue. At this point 3D Co Holdings, LLC, had been in suspended status for nearly 10 months. The declaration supporting Defendants’ motion for reconsideration contends that counsel was unaware of the suspended status at the time the opposition to the underlying motion was due. However, there is no explanation as to why the information could not have been discovered sooner with reasonable diligence. Thus, although Defendants have not met their burden on their motion for reconsideration, the Court additionally finds that Defendants forfeited their argument regarding 3D Co Holdings, LLC’s suspended status. Accordingly, the motion is denied. Defendants’ requests for judicial notice are granted. Defendants to give notice.
107	Trejo-Castillo vs. American Honda Motor Co Inc 23-01318475	1. Motion to Enforce Settlement 2. Case Management Conference Unopposed Motion to Enforce Settlement is GRANTED. CCP§ 664.6. The Parties Entered into an Enforceable Settlement Agreement on June 13, 2024. (Decl. Gopstein ¶ 4, Exs. 1-2.) Despite prior representations that the settlement funds would be delivered by 12/2/2025, Plaintiff’s counsel declares, as of 3/16/2025, “Plaintiff still does not have any concrete information about the Settlement check and therefore, has yet to receive any portion of the settlement funds, with Defendant’s counsel’s lack of response being a further delay tactic.” (Decl. Gopstein¶7.)